RESPONSIBILITY

Pursuant to Labor Code section 6401.9(c)(2)(A) & (B), the responsibilities of the WVPPAdministrator include:

- Collaborating with employees and any authorized employee representatives to develop and implement workplace violence safety procedures, including the identification, evaluation, and correction of workplace violence hazards;
- Designing and implementing training relating to workplace violence hazards;
- Investigation and reporting of workplace violence incidents; and,
- Ensuring all supervisory and non-supervisory employees participate in and are trained in the WVPP.

All employees are responsible for helping maintain the safety of the workplace. Managers and supervisors are responsible for ensuring compliance with the WVPP pursuant to Labor Code section 6401.9(c)(2)(E).

TYPES OF WORKPLACE VIOLENCE

The circumstances associated with workplace violence in California can be divided into four major types. However, it is important to keep in mind that a particular occupation or workplace may be subject to more than one type.

"Type 1 violence" means workplace violence committed by a person who has no legitimate business at the worksite and includes violent acts by anyone who enters the workplace or approaches workers with the intent to commit a crime.

"Type 2 violence" means workplace violence directed at employees by customers, clients, patients, students, inmates, or visitors.

"Type 3 violence" means workplace violence against an employee by a present or former employee, supervisor, or manager.

"Type 4 violence" means workplace violence committed in the workplace by a person who does not work there but has or is known to have had a personal relationship with an employee.

Please note that workplace violence does not include lawful acts of self-defense or defense of others.

COMPLIANCE

Management of our establishment is committed to ensuring that all safety and health policies and procedures involving workplace security are clearly communicated and understood by all workers. We have established the following policy to ensure compliance with our rules on workplace security and Labor Code section 6401.9.

All workers are responsible for using safe work practices, for following all directives, policies, and procedures, and for assisting in maintaining a safe and secure work environment. Our system of ensuring that all workers, including supervisors and managers, comply with work practices that are designed to make the workplace more secure, and do not engage in threats or physical actions that create a security hazard for others in the workplace, includes:

- Informing workers, supervisors, and managers of the provisions of our WVPP;
- Promoting procedures to obtain the active involvement of employees and authorized employee representatives in developing and implementing the WVPP;
- Evaluating the performance of all workers in complying with our establishment's workplace security measures;
- Recognizing workers who perform work practices that promote security in the workplace;
- Providing training and/or counseling to workers whose performance is deficient in complying with work practices designed to ensure workplace security; and
- Disciplining workers for failure to comply with workplace security practices.

COMMUNICATION

At our establishment, we recognize that to maintain a safe, healthy, and secure workplace we must have open, two-way communication between all workers, including managers and supervisors, on all workplace safety, health, and security issues. Our establishment has a communication system designed to encourage a continuous flow of safety, health, and security information between management and our workers without fear of reprisal and in a form that is readily understandable. Our communication system consists of the following checked items:

- New worker orientation on our establishment's workplace security policies, procedures, and work practices;
- Periodic review of our WVPP with all personnel;
- Training programs designed to address specific aspects of workplace security unique to our establishment;
- Regularly scheduled safety meetings with all personnel that include workplace security discussions;
- A system to ensure that all workers, including managers and supervisors, understand the workplace security policies;
- Posted or distributed workplace security information;
- A system for workers to inform management about workplace security hazards or threats of violence;
- Procedures for protecting workers who report threats from retaliation by the person making the threats; and
- Addressing security issues at our workplace security team meetings.

Employees should report any workplace violence incident to a member of management and/or the WVPP Administrator in person or via phone, email, or Via The KPA Workplace Volence Form

Employee concerns will promptly be investigated and addressed pursuant to this WVPP.

RESPONSE TO WORKPLACE VIOLENCE EMERGENCIES

If there is an active workplace violence incident at the workplace, employees will be notified by the WVPP Administrator and/or management personnel on site. The WVPP Administrator and/or management personnel will also alert local law enforcement. Employees may also contact any security personnel and/or law enforcement personnel directly if they witness or are experiencing a workplace violence incident. In the event of a workplace violence incident, employees should attempt to evacuate or shelter themselves until the workplace violence incident has ceased. The Company will develop and inform its employees of any evacuation or sheltering plans appropriate for the worksite.

WORKPLACE VIOLENCE HAZARD ASSESSMENT / INSPECTION

Periodic inspections to identify and evaluate workplace violence hazards in our workplace will be performed by the WVPP Administrator pursuant to Labor Code section 6401.9(c)(2)(I).

The WVPP Administrator will perform periodic, scheduled inspections to identify unsafe conditions and/or work practices.

Periodic inspections for security hazards consist of the identification and evaluation of workplace security hazards and changes in worker work practices and may require assessing for more than one type of workplace violence.

Our establishment performs inspections for each type of workplace violence by using the methods specified below to identify and evaluate workplace security hazards. Our procedures for investigating incidents of workplace violence, which includes threats and physical injury, include:

- Reviewing all previous incidents;
- Visiting the scene of an incident as soon as possible;
- Interviewing threatened or injured workers and witnesses;
- Examining the workplace for security risk factors associated with the incident, including any previous reports of inappropriate behavior by the perpetrator;
- Determining the cause of the incident;
- Taking corrective action to prevent the incident from recurring; and
- Recording the findings and corrective actions taken.

WORKPLACE VIOLENCE HAZARD CORRECTION

Any workplace violence hazard identified by the WVPP Administrator or the Company will be corrected in a timely manner based on the severity of the hazard(s), including when a hazard is observed or discovered. If a workplace violence incident occurs at the workplace, the WVPP will conduct a post-incident investigation in order to identify any improvements to Company policy or procedures to mitigate the future potential for workplace violence hazards. The WVPP Administrator will periodically review the effectiveness of this Workplace Violence Prevention Plan and revise the plan as needed to address any potential workplace violence hazard(s).

TRAINING AND INSTRUCTION

We have established the following policy on training all workers with respect to workplace security.

All workers, including managers and supervisors, shall have training and instruction on general and job-specific workplace security practices. Training and instruction shall be provided when the WVPP is first established and periodically thereafter. Training shall also be provided to all new workers and to other workers for whom training has not previously been provided and to all workers, supervisors, and managers given new job assignments for which specific workplace security training for that job assignment has not previously been provided. Additional training and instruction will be provided to all personnel whenever the employer is made aware of new or previously unrecognized security hazards.

General workplace security training and instruction includes, but is not limited to, the following:

- Explanation of the WVPP including measures for reporting any violent acts or threats of violence;
- Recognition of workplace security hazards including the risk factors associated with the four types of workplace violence;
- Measures to prevent workplace violence, including procedures for reporting workplace security hazards or threats to managers and supervisors;
- Ways to defuse hostile or threatening situations;
- Measures to summon others for assistance;
- Worker routes of escape;
- Notification of law enforcement authorities when a criminal act may have occurred;
- Emergency medical care provided in the event of any violent act upon a worker; and
- Post-event trauma counseling for those workers desiring such assistance.

In addition, we provide specific instructions to all workers regarding workplace security hazards unique to their job assignment, to the extent that such information was not already covered in other training.

RECORD KEEPING AND VIOLENCE INCIDENT LOG

We will maintain a record of any workplace violence incident or hazard in a Violence Incident Log. Information about each incident will be based on information obtained from employees who experienced workplace violence. The Company will omit any element of personal identifying information sufficient to allow identification of any person involved in a violent incident.

The information included in the Violence Incident Log includes the following:

- Date, time, and location of the incident;
- Description of the incident;
- The workplace violence involved in the incident;
- Consequences of the incident, including any law enforcement response and any corrective actions taken as a result of the incident; and
- Information about the person completing the Violence Incident Log, including name, job title, and date completed.

Records of workplace violence hazard identification, evaluation, and correction shall be created and maintained for a minimum of five years. Training records shall be created and maintained for a minimum of one year and will include training dates, contents or a summary of the training sessions, names and qualifications of persons conducting the training, and names and job titles of all persons attending the training sessions.

Violence Incident Logs will be maintained for a minimum of five years. Records of workplace violence incident investigations conducted pursuant to this WVPP will also be maintained for a minimum of five years. These records shall not contain "medical information."

All records required by this WVPP will be made available to employees and their representatives, on request, for examination and copying within 15 calendar days of a request.

WORKPLACE VIOLENCE PREVENTION PLAN ("WVPP")

Workplace Violence Prevention Plan ("WVPP") Administrator(s):

EMPLOYEE	JOB TITLE	RESPONSIBILITY
	Terminal Manager	Contact your Designated Terminal Manager
Steve Natividad	Director of Safety	Regional Safety for West Texas and California
Raul Olivarez	Safety Supervisor	Regional Safety for South Texas
Manuel Ortega	Director of Safety	Regional Safety for West Texas
Dan Kepple	VP - Safety & Compliance	